

09:00 AM

26-CLJ-00261 JPMORGAN CHASE BANK, N.A. VS. CANDY FILIPPINI
LINE 8

JPMORGAN CHASE BANK, N.A.
CANDY FILIPPINI

TIANHE BAI
SELF-REPRESENTED

Notice of Motion and Motion for Relief From Default

DEFENDANT CANDY FILIPPINI'S MOTION TO SET ASIDE AND VACATE DEFAULT
JUDGMENT AND ENTER ANOTHER AND DIFFERENT JUDGMENT

TENTATIVE RULING:

Defendant Candy Filippini's Motion to Set Aside and Vacate Default Judgment and Enter
Another and Different Judgment is DENIED.

Default Judgment in this matter was entered on February 26, 2026. Plaintiff filed the current
motion to set aside, on April 8, 2026, however it attaches no valid Proof of Service. Instead,
Plaintiff had filed a purported Proof of Service-Civil form on March 23, 2026, which claims that
service occurred on March 15, 2026. Clearly that Proof of Service-Civil is invalid, one cannot
serve a motion before it is even filed and before a date is scheduled for said motion.

Separately, the motion is also procedurally deficient. This matter is assigned to the Honorable
Michael L. Mau, Department 20, which is now located at 1050 Mission Road, South San
Francisco, CA 94080 in Courtroom L. (*See* Cal. Rules of Court, Rule 3.1110 [the required
Notice "must specify" the location of the hearing].) The April 8, 2026 Motion instead specifies it
would be heard in Dept. 20; [Courtroom] G, which is incorrect.

Due to these procedural defects, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to
all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that
the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order with
the Court waiving any Order after hearing.

09:00 AM

26-UDL-00442 CP VIII WESTLAKE OWNER 1 LLC v. PAUAL CHRISTENSEN
LINE 9

CP VIII WESTLAKE OWNER 1 LLC
PAULA CHRISTENSEN

KIYOSHI DIN
JULIET BRODIE

DEFENDANT STEPHANIE URDAHL'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Defendant's motion for judgment on the pleadings is DENIED.

This is a residential unlawful detainer action based on a three-day notice to quit. Def Stephanie Urdahl moves for judgment on the pleadings.

A motion for judgment on the pleadings may be granted when the complaint does not state facts sufficient to constitute a cause of action. CCP §438(3). An unlawful detainer complaint fails to state a cause of action if it does not allege fact to show that def's right to possession was properly terminated. *Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611. *Foster v. Williams* (2014) 229 Cal.App.4th Supp. 9, 14.

In this case, the three-day notice to quit states that defendant was arrested for misdemeanor battery and public intoxication after entering another unit and then slapping and pushing two contractors renovating the unit. There is no dispute that plaintiff seeks to evict defendant based on this single incident.

CCP Section 1161(4) provides that a tenant permitting, committing, maintaining or permitting the maintenance or commission of a nuisance, thereby terminates the lease and the landlord shall be entitled to possession under the unlawful detainer procedure. Civil Code §3479 defines a nuisance as anything that is injurious to health or is indecent or offensive to the senses or an obstruction to the free use of property so as to interfere with the comfortable enjoyment of life or property. Defendant cites no California authority that interprets Code of Civil Procedure section 1161, subdivision (4) to require continuing conduct. Section 1161, subdivision (4), also expressly refers to actions that may be in the singular, but the words "committing" or "commission of a nuisance." *Id.* Thus, the code itself does not even require continuing conduct.

Defendant's additional assertion that the single incident alleged in the complaint is insufficient to constitute a nuisance under Civil Code section 3479 presents a question of fact that must be determined by the trier of fact. *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937-938.

As such, the motion for judgment on the pleadings is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

POSTED BY: 3:00 P.M.